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Provision of February 13, 2025
Register of provisions
n. 68 of February 13, 2025

THE GUARANTOR FOR THE PROTECTION OF PERSONAL DATA

IN THE meeting held today, attended by
Prof. Pasquale Stanzione, President, Prof.
Ginevra Cerrina Feroni, Vice President, Dr.
Agostino Ghiglia and Attorney Guido Scorza, members, and
Dr. Claudio Filippi, Deputy Secretary General;

HAVING REGARD TO Regulation (EU) 2016/679 of the European Parliament
and of the Council of April 27, 2016, concerning
the protection of natural persons with regard to
the processing of personal data, as well as the free
movement of such data and repealing Directive
95/46/EC, "General Data Protection Regulation" (hereinafter, "Regulation");

HAVING REGARD TO Legislative Decree No. 196 of June 30, 2003, containing
"Code regarding the protection of personal data,
containing provisions for the adaptation
of the national legal system to Regulation (EU)
2016/679 of the European Parliament and of the Council, of
April 27, 2016, concerning the protection of
natural persons with regard to the processing of personal data,
as well as the free movement of such data and repealing Directive 95/46/EC (hereinafter
"Code");

HAVING REGARD TO Regulation No. 1/2019 concerning
internal procedures with external relevance,
aimed at carrying out the tasks and
exercising the powers entrusted to the Guarantor for the
protection of personal data, approved by
Resolution No. 98 of April 4, 2019, published in
G.U. No. 106 of May 8, 2019 and on www.gpdp.it, doc.
web n. 9107633 (hereinafter "Guarantor Regulation
No. 1/2019");

HAVING REGARD TO the documentation on file;

HAVING REGARD TO the observations made by the Secretary
General pursuant to Article 15 of the Guarantor's
Regulation No. 1/2000 on the organization and
operation of the office of the Guarantor for the
protection of personal data, doc. web n. 1098801;

REPORTER Attorney Guido Scorza;

PREAMBLE

1. Introduction.

With a complaint submitted pursuant to Article 77 of
the Regulation, an interested party alleged a presumed
violation of the rules on the protection
of personal data, concerning processing carried out by
the Municipality of Tuscania through video devices.

By note prot. n. XX of XX, the Authority, pursuant to Article 157 of the Code, sent a request for information to the Municipality regarding the facts subject to the complaint.

Not having received a response from the Municipality within the set deadline, the Authority, by note of XX (prot. n. XX), notified the Entity of the administrative violation contestation referred to in Article 166, paragraph 5, of the Code, for having acted in violation of Article 157 of the Code.

Although the Municipality had been informed of the possibility of sending defensive writings or documents to the Guarantor, as well as requesting to be heard in a hearing, within 30 days from the date of notification of the violation, made on XX, the Municipality neither submitted defensive memos nor requested to be heard within that deadline.

Only with note of XX (prot. n. XX), therefore belatedly, the Municipality partially provided the requested information elements.

The Entity also requested to be heard, a request that was rejected by note of XX (prot. n. XX), as it was submitted beyond the thirty-day deadline set by law (see Article 166, paragraphs 6 and 7 of the Code, as well as Article 18, paragraph 1 of Law No. 689 of November 24, 1981), which expired on XX.

With note of XX (prot. n. XX), formulated pursuant to Article 157 of the Code, the Authority therefore made a second request for information to the Municipality, regarding both the information elements already previously requested, which had not been provided, and further aspects related to the facts subject to the complaint.

However, the Municipality did not provide any response within the deadline set, and the Authority, with note of XX (prot. n. XX), notified the same of an additional administrative violation contestation referred to in Article 166, paragraph 5, of the Code, for having again acted in violation of Article 157 of the Code.

In response to this contestation, the Municipality, in addition to not having submitted defensive memos or requested to be heard within the thirty-day deadline from the date of notification of the violation, has to date not provided any response to the aforementioned request for information, despite the long time elapsed.

2. Outcome of the investigative activity.

In light of what was illustrated in the previous paragraph 1, it has been established that the Municipality has failed to provide responses to the aforementioned requests for information formulated by the Authority pursuant to Article 157 of the Code, having committed two violations of such provision and still being in default

of the obligation to respond to the Authority within the proceedings concerning the handling of the complaint.

3. Conclusions.

Based on the evaluations mentioned above, it is noted, given also the absence of defensive writings from the Municipality, the impossibility of overcoming the objections notified by the Office with the initiation of the proceedings, as there are no elements in the files that would allow for the archiving of the present proceedings and, moreover, none of the cases provided for by Article 11 of the Guarantor's Regulation No. 1/2019 apply.

Therefore, the preliminary evaluations of the Office are confirmed and the violation by the Municipality of the rules on the protection of personal data is noted.

****1. Background****

Due to the Municipality's failure to provide a full and timely response to the request for information referred to in the note dated XX (prot. n. XX) and its complete omission to respond to the request for information referred to in the note dated XX (prot. n. XX), there has been a dual violation of Article 157 of the Code.

Considering that the violations of the aforementioned provision occurred as a result of a single conduct (see the "Guidelines 4/2022 on the calculation of administrative monetary penalties pursuant to the GDPR," adopted by the European Data Protection Board on May 24, 2023, par. 40, which highlights that "one could also hypothesize a unit of action when a single action violates the same legal provision multiple times [...] when the circumstances constitute an iterative and congenial violation of the same legal provision in a close space-time succession), Article 83, par. 3, of the Regulation applies, according to which the total amount of the administrative monetary penalty does not exceed the amount specified for the most serious violation. Considering that, in this case, Article 157 of the Code has been violated multiple times within the proceedings concerning the same complaint, the penalty provided for by Article 83, par. 5, of the Regulation applies, as recalled by Article 166, paragraph 2, of the Code, and therefore, the total amount of the penalty is to be quantified up to €20,000,000.

****2. Corrective Measures (Article 58, par. 2, lett. a), of the Regulation)****

Given the Municipality's ongoing non-compliance, it is deemed necessary to order the same, pursuant to Articles 58, par. 2, lett. a), of the Regulation and 157 of the Code, to respond to the Authority within thirty days from the notification of this provision, both to the request for information referred to in the note dated XX (prot. n. XX), to which the Entity has only partially and tardily provided the necessary elements for the investigation related to the complaint, and to the request for information referred to in the note dated XX (prot. n. XX), which remains entirely unaddressed to this day.

****3. Adoption of the injunction order for the application of the administrative monetary penalty and accessory penalties (Articles 58, par. 2, lett. i and 83 of the Regulation; Article 166, paragraph 7, of the Code)****

The Guarantor, pursuant to Articles 58, par. 2, lett. i) and 83 of the Regulation as well as Article 166 of the Code, has the power to "impose an administrative monetary penalty pursuant to Article 83, in addition to the [other] corrective measures [referred to in this paragraph, or in lieu of such measures, depending on the circumstances of each individual case] and, in this context, "the Board [of the Guarantor] adopts the injunction order, which also provides for the application of the accessory administrative penalty of its publication, in whole or in part, on the Guarantor's website pursuant to Article 166, paragraph 7, of the Code" (Article 16, paragraph 1, of the Guarantor's Regulation No. 1/2019).

In this regard, considering Article 83, par. 3, of the Regulation, in this case, the violation of the cited provisions is subject to the application of the administrative monetary penalty provided for by Article 83, par. 5, of the Regulation. The aforementioned administrative monetary penalty imposed, depending on the circumstances of each individual case, must be determined in amount taking into due account the elements provided for by Article 83, par. 2, of the Regulation.

Considering that:

- the violation is characterized by particular gravity, given that the Municipality, in the context of the investigation related to the same complaint, has failed twice to provide a full and timely response to requests for information from the Authority, demonstrating a lack of consideration for the regulations on personal data protection and the role of the Guarantor, as well as causing a prolongation of the proceedings, to the detriment of the complainant's position within the same (Article 83, par. 2, lett. a), of the Regulation);
- the violation has a fraudulent character (Article 83, par. 2, lett. b), of the Regulation);
- it is believed that, in this case, the level of severity of the violation committed by the data controller is high (cf. European Data Protection Board, "Guidelines 4/2022 on the calculation of administrative monetary penalties pursuant to the GDPR" of May 24, 2023, point 60).

That said, considering that the data controller is a small Municipality (approximately 8,000 inhabitants), therefore equipped with limited economic resources, it is believed that, for the purposes of quantifying the penalty, the following circumstances should be taken into account:

- the Municipality has cooperated poorly with the Authority during the proceedings, having provided a partial and tardy response only with respect to one of the aforementioned requests for information (Article 83, par. 2, lett. f), of the Regulation);
- there are no previous relevant violations committed by the Municipality (Article 83, par. 2, lett. e), of the Regulation).

In light of the aforementioned elements, assessed in their entirety, it is deemed appropriate to determine the amount of the monetary penalty at €4,000 (four thousand) for the violation of Article 157 of the Code, as the administrative monetary penalty deemed, pursuant to Article 83, par. 1, of the Regulation, effective, proportionate, and deterrent.

It is also believed that, pursuant to Article 166, paragraph 7, of the Code and Article 16, paragraph 1, of the Guarantor's Regulation No. 1/2019, the publication of this section containing the injunction order on the Guarantor's website should proceed. This is in consideration of the particular...

****devaluation of the conduct of the Municipality, as highlighted above.****

It is finally noted that the conditions referred to in Article 17 of Regulation No. 1/2019 are met.

****ALL OF THE ABOVE STATED, THE GUARANTOR****

declares, pursuant to Article 57, paragraph 1, letter f), of the Regulation, the illegality of the processing carried out by the Municipality of Tuscania for violation of Article 157 of the Code, in the terms outlined in the reasoning;

****ORDERS****

the Municipality of Tuscania, represented by its legal representative pro tempore, with registered office at Piazza F. Basile, 5 - 01017 Tuscania (VT), Tax Code 00171510563, to pay the sum of €4,000 (four thousand) as an administrative pecuniary sanction for the violations indicated in the reasoning. It is represented that the offender, pursuant to Article 166, paragraph 8, of the Code, has the option to settle the dispute by payment, within 30 days, of an amount equal to half of the imposed sanction;

****COMMANDS****

- the aforementioned Municipality, in case of failure to settle the dispute pursuant to Article 166, paragraph 8, of the Code, to pay the sum of €4,000 (four thousand) according to the methods indicated in the attachment, within 30 days from the notification of this provision, under penalty of the adoption of the consequent executive acts pursuant to Article 27 of Law No. 689/1981;
- the aforementioned Municipality, pursuant to Articles 58, paragraph 1, letter a), of the Regulation and 157 of the Code, to provide feedback to the Authority, within thirty days from the notification of this provision, both to the request for information referred to in the note of XX (prot. No. XX), to which the

Entity has only partially and tardily provided the necessary elements for the investigation related to the complaint, and to the request for information referred to in the note of XX (prot. No. XX), which remains completely unanswered to this day;

****DISPOSES****

- pursuant to Article 166, paragraph 7, of the Code and Article 16, paragraph 1, of the Guarantor's Regulation No. 1/2019, the publication of the injunction order on the Guarantor's website;
 - pursuant to Article 154-bis, paragraph 3 of the Code and Article 37 of the Guarantor's Regulation No. 1/2019, the publication of this provision on the Authority's website;
 - pursuant to Article 17 of the Guarantor's Regulation No. 1/2019, the annotation of the violations and the measures adopted in accordance with Article 58, paragraph 2 of the Regulation, in the internal register of the Authority provided for by Article 57, paragraph 1, letter u) of the Regulation.
- Pursuant to Articles 78 of the Regulation, 152 of the Code, and 10 of Legislative Decree No. 150/2011, it is possible to appeal against this provision before the ordinary judicial authority, under penalty of inadmissibility, within thirty days from the date of communication of the provision itself or within sixty days if the appellant resides abroad.

Rome, February 13, 2025

****THE PRESIDENT****

Stanzione

****THE RAPPORTEUR****

Scorza

****THE DEPUTY SECRETARY GENERAL ****

Filippi